

26STCV00159 26STCV00159

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Case Number: 26STCV00159 Hearing Date: September 18, 2026 Dept: 224

TENTATIVE RULING

Defendant's demurrer pursuant to Code of Civil Procedure section 430.10, subdivision (e), is SUSTAINED with leave to amend as to the second, third, fourth, fifth, sixth, seventh, and eighth causes of action.

Defendant's Motion to Strike is MOOT.

Plaintiff shall file his Second Amended Complaint within 20 days.

Introduction

On January 5, 2026, Plaintiff Lawrence Lindsey filed a Complaint arising out of his purchase of a used 2021 Audi Q5, vehicle identification number WA1AAAFY2M2048298, and the warranties and service contract accompanying that purchase.

On March 10, 2026, Plaintiff filed a First Amended Complaint ("FAC") alleging eight causes of action.

On April 27, 2026, CarMax filed the instant Demurrer and Motion to Strike to Plaintiff's First Amended Complaint.

On September 4, 2026, Plaintiff filed oppositions to the demurrer and to the motion to strike.

Meet and Confer

Before filing a demurrer or a motion to strike, the demurring or moving party is required to meet and confer with the party who filed the pleading demurred to or the pleading that is subject to the motion to strike for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (CCP §§ 430.41)

The Declaration of Adam Zamost, executed on April 27, 2026, sets forth the meet and confer efforts of counsel for the Defendants, and counsel's attempts to resolve the disputes informally by telephone. The Court finds that the declaration does not satisfy the requirement of Code of Civil Procedure section 430.41, and exercises its discretion to proceed on the merits.

Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Wilson v. Transit Authority of City of Sacramento (1962) 199 Cal.App.2d 716, 720-21.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not on the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Id.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.)

Demurrer for Uncertainty

A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.) A demurrer for uncertainty will be sustained only where the complaint is so bad that the defendant cannot reasonably respond. (CCP § 430.10(f).)

Defendants contend the FAC is uncertain.

After reviewing the First Amended Complaint, the Court does not find the FAC to be so bad that Defendant cannot reasonably respond. The allegations are sufficiently clear and certain to place CarMax on notice of the nature of the wrongful conduct in which it is alleged to have engaged.

Second and Eighth Causes of Action: Breach of Implied Warranty of Merchantability

Defendant argues that these claims fail because the FAC does not allege the Vehicle was ever rendered unusable, and does not allege the duration of any express warranty or when the alleged defects arose.

CarMax's first argument overstates the standard. A plaintiff need not plead that the vehicle was wholly inoperable. "[A] merchantable vehicle under the statute requires more than the mere capability of 'just getting from point "A" to point "B."'" (Brand v. Hyundai Motor America (2014) 226 Cal.App.4th 1538, 1546.) A vehicle is unmerchantable if it is not in safe condition and substantially free of defects, and consumer safety is an important consideration under the implied warranty. (Id. at pp. 1546–1547.) That the implied warranty does not "impose a general requirement that the goods precisely fulfill the expectation of the buyer" and provides only for a minimum level of quality (American Suzuki Motor Corp. v. Superior Court (1995) 37 Cal.App.4th 1291, 1295–1296; Mocek v. Alfa Leisure, Inc. (2003) 114 Cal.App.4th 402, 405–406) does not convert the standard into one of total inoperability.

Plaintiff alleges the Vehicle contained or developed fuel pump defects, engine stall, vehicle non-start, fuel pump failure, fuel system issues, and other engine issues. (FAC ¶¶ 7, 29-30, 67.) Accepted as true, those allegations describe conditions bearing directly on safe and reliable operation.

CarMax's second argument regarding duration is well taken. Because the Vehicle is used, the implied warranty is coextensive with the express warranty and lasts no more than three months following the August 4, 2024 sale. (Civ. Code § 1795.5, subd. (c).)

The FAC alleges only that the nonconformities arose "[d]uring the warranty period" and "[w]ithin the time frame set forth in Civil Code section 1791.1." (FAC ¶¶ 7, 29, 67.) It does not allege the duration of CarMax's express warranty, the date that warranty issued, when any defect first manifested, or when the Vehicle was presented for repair. Without a stated duration and some temporal anchor for the defects, the FAC does not allege facts showing that the implied warranty was in force when the nonconformities arose.

To the extent the second cause of action also invokes 15 U.S.C. section 2310(d), "failure to state a warranty claim under state law necessarily constitutes a failure to state a claim under Magnuson-Moss." (Daugherty v. American Honda Motor Co., Inc. (2006) 144 Cal.App.4th 824, 833.) The federal theory therefore fails with the state theory.

Defendant's demurrer to the second and eighth causes of action is SUSTAINED on this ground as to CarMax, with leave to amend.

Third and Seventh Causes of Action: Breach of Express Warranty

An "express warranty" under the Act is "a written statement arising out of a sale to the consumer of a consumer good pursuant to which the manufacturer, distributor, or retailer undertakes to preserve or maintain the utility or performance of the consumer good or provide compensation if there is a failure in utility or performance." (Civ. Code § 1791.2, subd. (a)(1).) A written contract may be pleaded by its terms or by its legal effect; to plead by legal effect, the plaintiff "must allege the substance of its relevant terms." (McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457, 1489.)

To prevail on a breach of express warranty claim, the plaintiff must prove (1) the seller's statements constitute an affirmation of fact or promise or a description of the goods; (2) the statement was part of the basis of the bargain; and (3) the warranty was breached. (Weinstat v. Denstply Internat., Inc. (2010) 180 Cal.App.4th 1213, 1227.)

Repair Attempts

Defendant argues that Plaintiff must allege at least two specifically dated repair attempts, relying on Silvio v. Ford Motor Co. (2003) 109 Cal.App.4th 1205, 1207-

1208.

Whether a given number of repair attempts is "reasonable" is ordinarily a question of fact, and the ability to prove the allegation is immaterial on demurrer. Plaintiff alleges that he delivered the Vehicle to CarMax's representative for warranty repairs, notified the representative of the characteristics of the defects, and that the representative "failed to repair the Vehicle, breaching the terms of the written warranty on each occasion." (FAC ¶¶ 9, 36, 61.) That pleads more than a single attempt. Plaintiff is not required to plead the mileage and mechanical particulars of each repair visit.

Defendant's demurrer is OVERRULED on this ground as to CarMax.

Terms and Duration of the Express Warranty

Paragraph 46 pleads the legal effect of the warranty, tracking the language of section 1791.2. What it omits is duration.

As with the implied warranty claims, the duration of the express warranty is necessary to show that the warranty covered the Vehicle at the time the alleged nonconformities arose. An express warrantor is not obligated to repair a defect that first arises after the warranty expires. (Daugherty, supra, 144 Cal.App.4th at p. 830.) The FAC alleges no term, no mileage limit, no

issue date, and no date on which any defect appeared or the Vehicle was presented for repair. On this pleading the Court cannot determine that any repair obligation was ever triggered. Plaintiff is not required to plead the particulars of each repair visit, but he is required to plead facts placing those visits within a warranty period he has identified.

Defendant's demurrer to the third and seventh causes of action is SUSTAINED as to CarMax on this ground, with leave to amend.

Fourth Cause of Action: Violation of Service Contract (Civ. Code § 1794.4)

Defendant argues that Plaintiff must plead the identity of the obligor, the specific terms of the service contract, its duration, the scope of covered repairs, and any exclusions, and that his failure to do so renders the claim both insufficient and uncertain.

Several of these arguments fail. Civil Code section 1794.4, subdivision (b), supplies the scope of the obligation by statute: "Except as otherwise expressly provided in the service contract, every service contract shall obligate the service contractor to provide to the buyer of the product all of the services and functional parts that may be necessary to maintain proper operation of the entire product under normal operation and service for the duration of the service contract and without additional charge." Plaintiff therefore need not plead the scope of coverage. Any exclusion on which CarMax relies rests on a document outside the pleading.

Nor is the obligor's identity uncertain. The FAC alleges that Plaintiff purchased the service contract from CarMax and refers to "CARMAX's Service Contract." (FAC ¶¶ 40–41.) The cause of action is pleaded against CarMax alone.

Section 1794.4, subdivision (b), imposes the obligation only "for the duration of the service contract." A service contract must state "its duration measured by elapsed time or an objective measure of use." (Civ. Code § 1794.4, subd. (c)(2).) A service contract is distinct from an express warranty. (*Gavaldon v. DaimlerChrysler Corp.* (2004) 32 Cal.4th 1246, 1256–1259.) That distinction does not change the analysis of timing: like an express warranty, a service contract obligates the contractor only for a defined term.

The FAC alleges that CarMax failed to provide the required services and parts "for the duration of the service contract." (FAC ¶ 42.) It does not identify that duration. It also does not allege when the Vehicle was presented for repair under the contract. (FAC ¶ 41.) As with the express warranty claims, the allegation refers to a term the FAC never identifies and cannot be tested.

Defendant's demurrer to the fourth cause of action is SUSTAINED, with leave to amend.

Fifth and Sixth Causes of Action: Civil Code Section 1793.2, Subdivisions (d) and (b)

The fifth cause of action alleges failure to repurchase or replace the Vehicle after a reasonable number of unsuccessful repair attempts. The sixth alleges failure to service or repair the Vehicle to conform to the applicable warranties within 30 days.

Both obligations attach to CarMax, if at all, through Civil Code section 1795.5, and

only in a sale accompanied by CarMax's own express warranty. Both are therefore measured against the duration of that express warranty. For the reasons stated above, the FAC does not allege the duration of the express warranty, when the nonconformities arose, or when the Vehicle was presented for repair, and so does not allege facts showing that either statutory duty was triggered.

The sixth cause of action illustrates the problem. Paragraph 55 alleges that CarMax "failed to commence the service or repairs within a reasonable time and failed to service or repair the Vehicle so as to conform to the applicable warranties within 30 days." The FAC does not allege when the Vehicle was delivered for repair or when it was returned. Those are the facts that would make the 30-day allegation something other than a recitation of the statutory language.

Additionally, and independently, as discussed above the refund-or-replace remedy of section 1793.2, subdivision (d)(2), and the civil penalty under section 1794, subdivision (e), are confined to "new motor vehicles," and the Vehicle is not one. (Rodriguez, *supra*, 17 Cal.5th at pp. 200-202.) Leave to amend as to the fifth cause of action extends to repleading under section 1793.2, subdivision (d)(1), as applied through section 1795.5. It does not extend to reasserting the subdivision (d)(2) theory or the section 1794, subdivision (e), penalty.

Defendant's demurrer to the fifth and sixth causes of action is SUSTAINED, as to CarMax, with leave to amend.

Motion to Strike

Defendant moves to strike the civil penalty allegations in paragraphs 38, 44, 51, 59, and 63 of the FAC. Those allegations attach to the third, fourth, fifth, sixth, and seventh causes of action. Because the demurrer is sustained as to each of those causes of action, the motion to strike is MOOT.

Conclusion

Defendant's demurrer pursuant to Code of Civil Procedure section 430.10, subdivision (e), is SUSTAINED with leave to amend as to the second, third, fourth, fifth, sixth, seventh, and eighth causes of action.

Defendant's Motion to Strike is MOOT.

Plaintiff shall file his Second Amended Complaint within 20 days.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at SMCDept224@lacourt.org indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.